

JUSTIFICATION REVIEW DOCUMENT



NATIONAL GUARD BUREAU
111 South George Mason Drive
 Arlington, VA 22204-1373

1. OVERVIEW

a. Program/Equipment Name

130th AW Cell Services

b. Estimated Price

c. Authority

10 U.S.C. 3406(c)(5) as implemented in FAR 16.505(b)(2)(i)(B) Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

d. Technical Representative

Name

Title

Email

Phone

Date

e. Contracting Officer

☐ Requirements Representative *(If different from Technical Representative.)*

☐ Prepared by *(If different from Contracting Officer.)*

2. REVIEWS

I have reviewed this justification and find it adequate to support other than full and open competition.

☐ Program Manager *(If applicable.)*

☐ Program Executive Officer *(When item is Program Executive Officer managed.)*

Controlled by: National Guard Bureau

Controlled by: Local Office

CUI Category: SOURCE SELECTION

Limited Dissemination Control: FEDCON

POC:

Justification for an Exception to Fair Opportunity

Guidance

Local Control Number

NGB Control Number (if applicable)

1a. CONTRACTING ACTIVITY

130th MSG/MSc

b. Requiring Activity

c. POC

2a. NATURE OF ACTION

Sole source; Individual Basis

b. Contract Action

New Contract

c. Contract Type

Firm Fixed Price

d. Fund Type

O&M, Air

3a. ESTIMATED PRICE

4a. Name of Requirement

130th AW Cell Services

b. Description of Requirement

Cell Phone FirstNet services via Spiral 4 base wide

c. Demonstrate, in Detail, Why This Specific Item or Service, is the Only One That Meets Your Requirements

The Government requires a secure, resilient, and mission-ready communications solution capable of operating in geographically remote and bandwidth-constrained environments, including mountainous regions such as those found throughout West Virginia. The solution must support mobile data connectivity with priority access, preemption capabilities, and end-to-end encryption to minimize exposure of Controlled Unclassified Information (CUI) during transmission. FirstNet, operated exclusively by AT&T under the Nationwide Public Safety Broadband Network (NPSBN) contract, is the only communications service that meets all of these requirements. FirstNet was established by the First Responder Network Authority and awarded through full and open competition to AT&T, resulting in a single-source provider. No other commercial carrier offers the combination of features mandated by FirstNet, including: Priority and Preemption: Ensures that authorized users have uninterrupted access to the network even during high-traffic emergencies. Dedicated Core Network: Segregates public safety traffic from commercial traffic, enhancing security and reliability. Enhanced Coverage: Specifically engineered to provide service in rural, remote, and hard-to-reach areas—including the mountainous terrain of West Virginia—where traditional networks often fail. Security and Compliance: Meets federal cybersecurity standards and supports secure transmission of sensitive data, including CUI. Authorized Access: Only eligible federal agencies and personnel are permitted to procure and use FirstNet services, ensuring controlled deployment and usage. Alternative commercial networks lack the dedicated infrastructure, security protocols, and public safety prioritization required for this mission-critical application. Furthermore, technical data packages or specifications suitable for full and open competition were not developed because the requirement is inherently tied to the unique capabilities of the FirstNet network, which is not replicable by any other provider.

5a. HAS THIS BEEN PREVIOUSLY PROCURED?

☐ Yes, details are below.
 ☒ No.

6a. AUTHORITY CITED

10 U.S.C. 3406(c)(5) as implemented in FAR 16.505(b)(2)(i)(B) Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

b. Reason for Authority Cited

The Government requires a highly reliable, secure, and resilient mobile communication capability to ensure uninterrupted connectivity in geographically challenging and bandwidth-constrained environments. This need is especially critical in mission areas such as West Virginia, where mountainous terrain and remote operating locations significantly degrade conventional commercial network coverage. To mitigate the risk of communication loss and maintain operational continuity, the Government must procure mobile devices and services that provide robust, prioritized, and secure data connectivity. To further reduce the exposure of Controlled Unclassified Information (CUI), the Government requires a solution that leverages a network infrastructure purpose-built for public safety and authorized federal mission partners. After extensive market research and evaluation, the Government has determined that the First Responder Network Authority (FirstNet), operated by AT&T, is uniquely capable of meeting these requirements. FirstNet is the only nationwide, interoperable broadband network dedicated to public safety and authorized federal users. The Nationwide Public Safety Broadband Network (NPSBN) contract was awarded to AT&T through full and open competition, resulting in a single-source provider for FirstNet services. This award grants AT&T exclusive rights to deliver FirstNet capabilities, including: Priority and preemption features, Enhanced security protections, Coverage and performance tailored to public safety and federal mission needs. In accordance with FAR 16.505(b)(2)(i)(B), this acquisition qualifies for an exception to fair opportunity because only one awardee—AT&T—is capable of providing the required services at the necessary level of quality. The services are unique, highly specialized, and intrinsically tied to the FirstNet network, which no other contractor is authorized or technically able to provide. This justification is further supported by the Department of the Navy's ALLNAV message R121659Z FEB 19, which authorizes eligible federal users to procure FirstNet services. Because the requirement is inseparable from the exclusive capabilities of the FirstNet network, no technical data package, specification, or statement of work suitable for full and open competition could be developed. The Government requires prioritized communications to ensure continuity during events that may degrade bandwidth availability. Additionally, the Government requires mobile devices with data capability that minimize CUI exposure by operating on the most reliable network.

available in its common operating areas. FirstNet is the only solution that satisfies these requirements. This acquisition will support authorized federal personnel operating across all 50 states, U.S. territories, and during international travel. Only authorized users may procure FirstNet services, and the NPSBN contract—awarded through full and open competition—resulted in a single award to AT&T. Therefore, orders for FirstNet services may be placed with AT&T under the Exception to Fair Opportunity, referencing the FirstNet ALLNAV message as justification. The statutory authority permitting this exception is 10 U.S.C. 2304c, as implemented by FAR 16.505(b)(2)(i)(B), which allows for directed orders when only one awardee is capable of providing the required supplies or services at the necessary level of quality due to their unique or highly specialized nature.

7. POSTING REQUIREMENTS

None.

8. CONTRACTING REQUIREMENTS

a. Efforts to Obtain Competition

Due to the mandate requiring the use of this specific contract, an Intent to Sole Source will be posted for 7 days. No other actions to increase competition were taken, as procurement is restricted to this vehicle.

b. Actions to Increase Competition

A Intent to Sole Source will be posted for 7 days to overcome the competition barrier

c. Market Research

Market research was conducted by surveying the following Internet sources: Google, GSA, UNICOR, AbilityOne, SAM.gov, and the SBA Website. Market research provided that neither UNICOR nor AbilityOne can provide this type of service. Historical acquisitions were reviewed for similar services provided to the government. Additional research was conducted within the Spiral 4 wireless service multiple award contract (MAC) for FirstNet Services. This research established that AT&T is the authorized provider for FirstNet Services, which is mandatory for the Department of Defense. A Notice of Intent to Award a Sole Source Contract was published on SAM.gov for a duration of 7 days, providing all interested parties with an opportunity to review and submit their capabilities

d. Interested Sources

To date, no other sources have written to express an interest in this requirement.

e. Other Facts

N/A

9. REQUIRING ACTIVITY CERTIFICATION

Technical and Requirements

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

11. APPROVAL

Contracting Officer (KO)

1. I hereby determine that the anticipated cost to the government for this contract action will be Fair and Reasonable.
2. I certify that this Justification is accurate and complete to the best of my knowledge and belief.

(This certification shall be made by the contracting Officer who will sign the contract resulting from this Justification and Approval.)

12. REDACTION INSTRUCTIONS

After completion and signatures, print to PDF. Then redact items such as, but not limited to:

1. Dollar amounts.
2. Names.
3. Signatures.
4. Proprietary information.

FAR 5.401, FAR 24.1, and FAR 24.2